

23CV02139 Priscilla Carbajal et al vs Jazmin Miller

County: santa-barbara

Division: Unlimited Auto (22)

Hearing date: 2026-09-22

Motion: Minor's Compromise / Motion to Set Review Hearing

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Tentative Ruling: Priscilla Carbajal et al vs Jazmin Miller

Case Number

23CV02139

Case Type

Unlimited Auto (22)

Hearing Date / Time

Tue, 09/22/2026 - 08:30

Nature of Proceedings

Minor's Compromise / Motion to Set Review Hearing

Tentative Ruling

Appearances required, including the minor. (CRC 7.952.) Zoom appearances are acceptable at this time.

The following must be submitted before petition may be approved:

Documentation re: Full Recovery or Long Term Prognosis. Adequate documentation that the minor has fully recovered, or is expected to fully recover from his injuries. The attachments supporting the allegation at paragraph 8 of the petition do not support a finding that the minor will fully recover or contain a long-term prognosis.

Supplement re: Insolvency of Defendant. Adequate evidence of sufficient investigation into the solvency of the settling defendant above the policy limits of the settling insurance company. There are no facts alleged that defendant cannot meet a judgment past the policy limits should the settlement amount be deemed insufficient for the future care of the minor.

Signed Declaration re: Attorney's Fees. Both declarations in support of the two petitions in this case are unsigned, thus not admissible.

Moreover, the court notes that the attorney's fees requested are inconsistent. Attorney Nesheiwat's unsigned declarations re attorney's fees supports a request for fees of \$1,875. (Nesheiwat Decl., para. 5.) Each petition requests fees of \$2,375. The difference appears to be based on the addition of the MedPay proceeds to the reported settlement amount. As this amount does not originate from the settlement with defendant, it should not be used as a basis for calculating fees. The court will thus allow a fee of \$1,875, consistent with the amount supported by the declaration. Proposed orders consistent with this will be required.

Judges

Judge Patricia Kelly

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